

Amendment No. 2 to HB0735

Wright
Signature of Sponsor

AMEND Senate Bill No. 773

House Bill No. 735*

by deleting all the language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 13-3-401, is amended by adding the following new, appropriately designated subdivision:

() "Submission" means:

(A) With respect to a development plan, the date on which an applicant submits to a local government a complete application for approval of the development plan; or

(B) With respect to a building permit, the date on which an applicant submits to a local government a complete application for approval of the building permit.

SECTION 2. Tennessee Code Annotated, Section 13-3-413, is amended by adding the following new subsections:

() Notwithstanding this section to the contrary:

(1) A vesting period applicable to a development plan approved by a local government must not expire earlier than three (3) years following the later of the date on which the appeal period for challenging such approval has expired or the date on which all appeals of such approval have been exhausted; and

(2) A vesting period applicable to a building permit issued by a local government must not expire earlier than three (3) years following the later of the date on which the appeal period for challenging such issuance has expired or the date on which all appeals of such issuance have been exhausted.

() Any question related to the power of a board of appeals to hear and render decisions on applications for approval of development plans under a special exception authorized by an ordinance passed by a county legislative body, or to hear and render decisions on any other matter authorized by the county legislative body under the power granted pursuant to § 13-7-107(b), must be resolved in favor of the board of appeals having the authority described in such ordinance.

SECTION 3. Tennessee Code Annotated, Section 13-4-301, is amended by adding the following new, appropriately designated subdivision:

() "Submission" means:

(A) With respect to a development plan, the date on which an applicant submits to a local government a complete application for approval of the development plan; or

(B) With respect to a building permit, the date on which an applicant submits to a local government a complete application for approval of the building permit.

SECTION 4. Tennessee Code Annotated, Section 13-4-310, is amended by adding the following new subsections:

() Notwithstanding this section to the contrary:

(1) A vesting period applicable to a development plan approved by a local government must not expire earlier than three (3) years following the later of the date on which the appeal period for challenging such approval has expired or the date on which all appeals of such approval have been exhausted; and

(2) A vesting period applicable to a building permit issued by a local government must not expire earlier than three (3) years following the later of the date on which the appeal period for challenging such issuance has expired or the date on which all appeals of such issuance have been exhausted.

() Any question related to the power of a board of appeals to hear and render decisions on applications for approval of development plans under a special exception authorized by an ordinance passed by the municipal legislative body, or to hear and render decisions on any other matter authorized by the municipal legislative body under the power granted pursuant to § 13-7-206(a), must be resolved in favor of the board of appeals having the authority described in such ordinance.

SECTION 5. This act takes effect on July 1, 2025, the public welfare requiring it.